

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
BEN JORDAN BOAZ,

Plaintiff,

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER NELSON
MANGUAL, SHIELD #23565, POLICE OFFICER
RONALD KOWALSKI, SHIELD #5143 and POLICE
OFFICER FNU JIMENEZ,**

Defendants.
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff(s) Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is completed if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 21, 2013

Defendant(s)' Address:
THE CITY OF NEW YORK:
100 Church Street, New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT:
1 Police Plaza, New York, New York 10038

P.O. NELSON MANGUAL, SHIELD #23565
c/o NYPD, 1 Police Plaza, NY, NY 10038

P.O. RONALD KOWALSKI, SHIELD #5143
c/o NYPD, 1 Police Plaza, NY, NY 10038

Index No.:

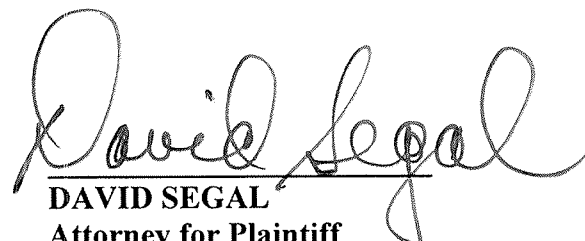
Date Filed:

**Plaintiff designates Bronx
County as the Place
For trial.**

**The basis of venue is
Place of Occurrence**

SUMMONS

**Plaintiff resides at
88-48 Ashbury Drive, Apt J
Charlotte, NC 28213**


DAVID SEGAL
Attorney for Plaintiff
7 Dey Street
New York, New York 10007
(212) 406 - 9200

POLICE OFFICER FNU JIMENEZ
c/o NYPD, 1 Police Plaza, NY, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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BEN JORDAN BOAZ,

Plaintiff,

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CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER NELSON MANGUAL,
SHIELD #23565, POLICE OFFICER RONALD
KOWALSKI, SHIELD #5143 and POLICE OFFICER FNU
JIMENEZ,

Defendants.
-----X

COMPLAINT

Plaintiff, by his attorney, *DAVID SEGAL*, complaining of the defendants, respectfully
alleges, upon information and belief, as follows:

PARTIES

1. Plaintiff, *BEN JORDAN BOAZ (BOAZ)*, was and still is a resident of the County
of Bronx, City and State of New York.

2. At all the times herein mentioned, defendant *CITY OF NEW YORK (CITY)* was
and still is a domestic municipal corporation duly organized and existing under and by virtue of
the laws of the City and State of New York.

3. At all the times herein mentioned, defendant *NEW YORK CITY POLICE
DEPARTMENT (NYPD)*, was and still is a municipal agency duly organized and existing under
and by virtue of the laws of the City and State of New York.

4. The defendant, *POLICE OFFICER NELSON MANGUAL, SHIELD #23565,
(MANGUAL)*, is a police officer employed by the defendants *CITY* and *NYPD*.

5. The defendant, ***POLICE OFFICER RONALD KOWALSKI, SHIELD #5143 (KOWALSKI)***, is a police officer employed by the defendants ***CITY*** and ***NYPD***.

6. The defendant, ***POLICE OFFICER FNU JIMENEZ (JIMENEZ)***, is a police officer employed by the defendants ***CITY*** and ***NYPD***.

7. At all times herein mentioned, the defendants ***MANGUAL, KOWALSKI*** and ***JIMENEZ*** were assigned to the 42nd Precinct by the defendant ***NYPD***.

8. At all times herein mentioned, the defendants ***MANGUAL, KOWALSKI*** and ***JIMENEZ*** were employed by the defendants ***CITY*** and ***NYPD***, in the capacity of police officers, and were acting in such capacity as the agents, officers, servants and employees of the defendants, ***CITY*** and ***NYPD***. Each is sued individually and in their official capacity.

9. At all the times herein mentioned, defendants ***MANGUAL, KOWALSKI*** and ***JIMENEZ*** were acting under color of state law and under their authority as police officers for the defendants, ***CITY*** and ***NYPD***.

CONDITION PRECEDENT

10. The plaintiff has duly and timely served a statutory Notice of Claim upon the defendant ***CITY*** and a statutory 50-h Hearing has been held.

11. The plaintiff has complied with all the conditions precedent to the institution of this action and have complied with all the provisions of the charter of the City of New York in relation thereto and in particular have duly presented his claim herein to the Comptroller and Corporation Counsel of the City of New York for adjustment, and that more than thirty (30) days have elapsed since the presentation of said notice of claim and that said claim remains unadjusted and the Comptroller of the City of New York has failed and refused to make any adjustment or payment of the same and the plaintiff, prior to the commencement of these actions

and within ninety (90) days after the injuries hereinafter described were received, duly served his notice of intention to sue upon the claim hereinafter set forth, and that fifteen (15) months have not elapsed since the accrual of this cause of actions against the defendants.

FACTS

12. On October 3, 2010, at or about 1:30 A.M., the plaintiff was driving his vehicle in the vicinity of 1438 Prospect Avenue, Bronx, New York.

13. On October 3, 2010, at or about 1:30 A.M., the defendants **MANGUAL** and **KOWALSKI** were in uniform and patrolling the vicinity of 1438 Prospect Avenue, Bronx, New York, in a Radio Motor Patrol vehicle (RMP).

14. On October 3, 2010, at or about 1:30 A.M., the defendants **MANGUAL** and **KOWALSKI** turned on their police lights and directed the plaintiff to pull over his vehicle.

15. Plaintiff complied with defendants **MANGUAL** and **KOWALSKI**.

16. Defendants **MANGUAL** and **KOWALSKI** exited their vehicle and approached the driver side of the plaintiff's vehicle.

17. Defendant **MANGUAL** asked the plaintiff for his license, registration and insurance.

18. The plaintiff provided his license, registration and insurance to defendant **MANGUAL**.

19. Plaintiff asked the defendant **MANGUAL** why he was stopped.

20. Defendant **MANGUAL** told plaintiff it was for speeding.

21. Plaintiff asked defendant **MANGUAL** how fast he was going.

22. Defendant **MANGUAL** did not answer the plaintiff and walked by to the RMP with defendant **KOWALSKI**.

23. Defendant **MANGUAL** walked to the trunk of the RMP and retrieved a tint meter.
24. Plaintiff's vehicle did not have tint on the windows.
25. Defendant **MANGUAL** walked to plaintiff's driver side window and asked Plaintiff to roll his car windows up.
26. Plaintiff was confused and said to defendant **MANGUAL**, "Excuse me?"
27. Defendant **MANGUAL** ordered Plaintiff to roll up his car windows more.
28. Plaintiff rolled his window up more and defendant **MANGUAL** ordered Plaintiff to roll his window down.
29. Plaintiff rolled his window down and said to defendant **MANGUAL**, "I am trying to comply."
30. Defendant **MANGUAL** reached into Plaintiff's car and pulled him out of his vehicle.
31. Defendants **MANGUAL** and **KOWALSKI** wrestled with Plaintiff until they grabbed both of his hands and handcuffed the plaintiff.
32. Defendants **MANGUAL** and **KOWALSKI** placed Plaintiff at the back of his car.
33. Defendant **JIMENEZ** arrived in an RMP at 1438 Prospect Avenue, Bronx, New York.
34. Plaintiff remained at the back of his vehicle for ten (10) minutes until defendants **MANGUAL**, **KOWALSKI** and **JIMENEZ** walked plaintiff over to an RMP.
35. Defendants **MANGUAL**, **KOWALSKI** and **JIMENEZ** attempted to get Plaintiff inside the RMP.
36. Plaintiff asked defendants **MANGUAL**, **KOWALSKI** and **JIMENEZ**, "What am I being arrested for?"

37. Defendant **JIMENEZ** said, "Shut up and get in!" and then tackled Plaintiff using his left shoulder and body to get Plaintiff inside the RMP.

38. Plaintiff did not go inside the RMP.

39. Defendant **JIMENEZ** kneed the plaintiff in the groin.

40. Defendant **JIMENEZ** tackled the Plaintiff again causing Plaintiff's upper body to be inside the RMP and his legs outside of the RMP.

41. Defendant **JIMENEZ** repeatedly slams the RMP car door on Plaintiff's legs.

42. Defendants **MANGUAL**, **KOWALSKI** and **JIMENEZ** use batons on the plaintiff's legs.

43. One of the defendants **MANGUAL**, **KOWALSKI** and **JIMENEZ**, walked to the other side of the RMP, opened the passenger rear door, grabbed plaintiff by his cuffed hands and shoulders and pulled plaintiff completely inside the RMP.

44. One of the defendants, **MANGUAL**, **KOWALSKI** or **JIMENEZ**, sprayed pepper spray into the back seat of the RMP and shut the RMP doors.

45. One of the defendants, **MANGUAL**, **KOWALSKI** or **JIMENEZ**, went to the front passenger door, opened the door, sprayed pepper spray directly into the plaintiff's face, closed the partition in the RMP and shut the RMP door.

46. Plaintiff in pain remained in the RMP for thirty (30) minutes.

47. Defendants **MANGUAL**, **KOWALSKI** and **JIMENEZ** drove Plaintiff to the 42nd Precinct located at 830 Washington Avenue, Bronx, New York.

48. Plaintiff had to be carried by multiple police officers into the Precinct.

49. Plaintiff requested medical attention inside the Precinct.

50. Plaintiff was fingerprinted, photographed and searched inside the Precinct.

51. No contraband was found on the plaintiff.
52. Plaintiff in pain was held in a holding cell.
53. An ambulance arrived approximately one (1) hour after plaintiff arrived at precinct.
54. A Defendant *NYPD* Sergeant came to the plaintiff's cell and stayed with plaintiff.
55. An EMT assisted plaintiff in washing his face and eyes, checked his knees and provided plaintiff with ice.
56. On October 3, 2010, at or about 6:00 A.M., the plaintiff was transported to Central Booking.
57. Plaintiff remained at Central Booking for approximately two (2) days.
58. Plaintiff requested medical treatment at Central Booking and was only given Tylenol.
59. Plaintiff was arraigned in the Criminal Court of the City of New York, County of Bronx, on the following Misdemeanor Complaint, Docket #2010BX062473.
60. The Misdemeanor Complaint, Docket #2010BX062473 charged the plaintiff with the following crimes:
- Resisting Arrest
 - Obstructing Governmental Administration
 - Attempted Assault
 - Disorderly Conduct
 - Harassment
61. At arraignment, the plaintiff was released on his own recognizance.

62. On August 22, 2012, Plaintiff went to trial on Misdemeanor Complaint, Docket #2010BX062473 before Judge Newman in the Criminal Court of the City of New York, County of Bronx.

63. The Resisting Arrest and Obstructing Governmental Administration charges (Counts 1 and 2) of Misdemeanor Complaint, Docket #2010BX062473 were dismissed by Judge Newman.

64. After trial, Judge Newman acquitted Plaintiff of the remaining charges.

65. Defendants *MANGUAL*, *KOWALSKI* and *JIMENEZ*, jointly and severally, while acting in active concert, committed the following acts:

- a) Without a legal or just reason or probable cause arrested and imprisoned plaintiff.
- b) Assaulted the plaintiff.
- c) Refused to aid plaintiff.
- d) Covered-up their actions.
- e) Refused to give aid and medical treatment to plaintiff.
- f) Held plaintiff at the 42nd Precinct and the Bronx Criminal Courts Building for approximately fifty-two (52) hours knowing that they had no probable cause to detain plaintiff.
- g) Failed and refused to timely advise plaintiff of the reasons for his arrest.
- h) Falsely swore to a Criminal Court Complaints charging plaintiff with *Resisting Arrest* and other related charges when the defendants knew that plaintiff had not committed such crimes.

66. These assaults on January 24, 2012 on plaintiff were malicious, without provocation, excessive, illegal and unjustified.

67. None of the defendants provided prompt medical care to plaintiff.

FIRST CAUSE OF ACTION
ASSAULT

68. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered “1” through “67” herein, as if the same were set forth more fully and at length.

69. That as a direct and proximate result of the intentional and malicious acts of the defendants **MANGUAL, KOWALSKI** and **JIMENEZ** all committed under color of state law and under their authority as police officers employed by the defendants, **CITY** and **NYPD**, and while acting in the scope of their employment, and pursuant to authority vested in them by defendants, **CITY** and **NYPD**, assaulted the plaintiff.

70. That by engaging in the foregoing acts, practices and courses of conduct, the defendants, **MANGUAL, KOWALSKI** and **JIMENEZ**, used their position as police officers for improper purposes, subjecting plaintiff to physical abuse, deprivation of his rights, privileges, and immunities as guaranteed to him by the First, Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution and in that plaintiff was denied his protected rights to be free from illegal excessive and unnecessary force.

71. That none of the aforesaid acts which were perpetrated upon plaintiff were done as a consequence of any improper, criminal or suspicious conduct on the part of the plaintiff.

72. That by reason of the foregoing, the plaintiff has suffered substantial damages.

73. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SECOND CAUSE OF ACTION
FALSE ARREST AND IMPRISONMENT

74. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered “1” through “67” herein, as if the same were set forth herein more fully and at length.

75. The defendants, **MANGUAL**, **KOWALSKI** and **JIMENEZ**, jointly and severally, acting in concert and under color of state law, and each aiding and abetting one another with knowledge of the systematic violation of plaintiff’s Constitutional and Civil Rights as previously alleged, did actively conspire to prevent plaintiff from obtaining redress from such violations and did further agree to undertake any actions necessary to hide, cover up, and falsely justify their actions and in furtherance of, they did commit the following acts:

- a. Falsely arrested plaintiff.
- b. Falsely imprisoned plaintiff.
- c. Refused to give aid and medical treatment to plaintiff.
- d. Falsely swore to a Criminal Court Complaint charging plaintiff with ***Resisting Arrest*** and other related charges when the defendants knew that plaintiff had not committed such crimes.

76. That by engaging in the foregoing acts, the defendants, **MANGUAL**, **KOWALSKI** and **JIMENEZ**, all committed under color of state law and under their authority as police officers of the defendants, **CITY** and **NYPD**, and while acting in the scope of their employment and pursuant to authority vested in them by the defendants, **CITY** and **NYPD**, the defendants, jointly and severally, entered into and carried out a plan and scheme designed and intended to deny and deprive plaintiff of his rights, privileges and immunities as guaranteed to him by the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution, and in fact did so deny and deprive plaintiff of his rights, privileges and immunities.

77. That by reason of the foregoing, the plaintiff has suffered substantial damages.

78. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

THIRD CAUSE OF ACTION
NEGLIGENT TRAINING AND SUPERVISION

79. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered “1” through “67” herein, as if the same were set forth herein more fully and at length.

80. That defendants, **CITY** and **NYPD**, by their deliberate acts, gross negligence and reckless conduct in failing to adequately train, discipline and supervise defendants, **MANGUAL**, **KOWALSKI** and **JIMENEZ**, and in their failure to promulgate and put into effect appropriate rules and regulations applicable to the duties, conduct, activities and behavior of their agents, servants and employees, directly caused the harm suffered by plaintiff.

81. That defendants, **CITY** and **NYPD**, by their deliberate acts, gross negligence and reckless conduct in failing to adequately train, discipline and supervise defendants, **MANGUAL**, **KOWALSKI** and **JIMENEZ**, and in their failure to promulgate and put into effect appropriate rules and regulations applicable to the duties, conduct, activities and behavior of their agents, servants and employees, directly caused the harm suffered by plaintiff.

82. That the acts of the defendants, **MANGUAL**, **KOWALSKI** and **JIMENEZ**, committed under color of state law, deprived plaintiff of his rights, privileges and immunities as guaranteed to him by the First, Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.

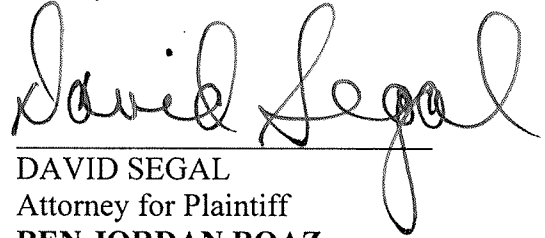
83. That by reason of the foregoing, the plaintiff has suffered substantial damages.

84. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, the plaintiff demands judgment against each defendant, jointly and severally, together with the costs and disbursements of this action.

Dated: New York, New York
October 21, 2013

Yours, etc.

A handwritten signature in cursive script that reads "David Segal". The signature is written in dark ink and is positioned above a horizontal line.

DAVID SEGAL
Attorney for Plaintiff
BEN JORDAN BOAZ
7 Dey Street, Suite 1401
New York, New York 10007
(212) 406-9200

Index No.: Year: RJI No.: Hon:

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Plaintiff,

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SHIELD #23565, POLICE OFFICER RONALD KOWALSKI,
SHIELD #5143 and POLICE OFFICER FNU JIMENEZ,**

Defendants.

SUMMONS AND COMPLAINT

DAVID SEGAL

Attorney for Plaintiff

Office & Post Office Address, Telephone

7 DEY STREET

NEW YORK, N.Y. 10007

(212) 406-9200

To:

Signature (Rule 130-1.1-a)

Print name beneath

Attorney(s) for

Service of a copy of the within
Dated,

is hereby admitted.

Attorney(s) for

Please take notice

1 NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within names court on

1 NOTICE OF SETTLEMENT

that an order of which the within is a true copy will be presented for settlement to the HON.
one of the judges of the within names court, at

on

To:

Yours, etc.

DAVID SEGAL

Attorney for Plaintiff

Office & Post Office Address

7 DEY STREET

NEW YORK, NY 10007

Attorney(s) for: